



Appeal Decision

Site visit made on 28 July 2026

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 28 August 2026

Appeal Ref: 6003507

Land opposite 17 Harper Royd Lane, Sowerby Bridge, Calderdale HX6 3QQ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by D Barclay against the decision of Calderdale Metropolitan Borough Council.
 - The application reference is 25/01008/FUL.
 - The development proposed is described as 'stable block'.
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Decision

1. The appeal is dismissed.

Preliminary Matter

2. Since the appeal was lodged, the National Planning Policy Framework (the Framework) has been updated. I have determined the appeal on the basis of the current Framework. The parties, through the evidence submitted with the appeal, have had the opportunity to address the planning merits of the proposal, including matters relating to development in the Green Belt. I am satisfied that the changes to the Framework do not alter the substance of the main issues in this appeal or prejudice either party.
3. An additional cross-section plan was submitted with the appeal. This provides further information about the relationship between the proposed stable, the adjoining road and the surrounding land levels. It does not materially alter the development that was before the Council when it made its decision. I am satisfied that taking it into account would not disadvantage any party and I have determined the appeal on that basis.

Main Issues

4. The main issues are:
 - whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies, including any relevant effects on the openness of and purposes of including land within the Green Belt;
 - the effect of the proposal on the character and appearance of the area; and,
 - whether the harm by reason of inappropriateness, and any other harm, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether Inappropriate Development, Openness, and Purposes

5. The appeal site lies within the Green Belt, where the essential characteristics are openness and permanence. Policy GB1 of the Calderdale Local Plan 2018/19-2032/33 (March 2023) (the LP) seeks to control development in the Green Belt and identifies forms of development that are not inappropriate. Although Policy GB1 reflects earlier national policy wording, it continues to seek to protect the openness of the Green Belt and prevent inappropriate development. I have therefore considered the proposal against Policy GB1 of the LP and the current Framework, including Policy GB7.
6. The proposed stable would be associated with the existing equestrian use of the wider landholding. The keeping and riding of horses for private recreational purposes can be treated as outdoor recreation, and the proposed stable, including the fodder store and tack room, would serve that use. I am therefore satisfied that the building would be a facility for outdoor recreation for the purposes of Policy GB7(1)(f)(iv) of the Framework.
7. However, Policy GB7(1)(f) is not satisfied merely because a building is connected with outdoor recreation. The relevant exception applies only where the development minimises its impact on the openness of the Green Belt and does not conflict with the purposes of including land within it. The associated engineering operations required as part of the scheme are also required to satisfy the relevant requirements of Policy GB7.
8. The proposed stable would be located on a presently undeveloped part of the site, close to Harper Royd Lane and separated from the existing stable building and manège. Although the building would be single storey and of a form commonly associated with equestrian use, it would nevertheless introduce a new structure, associated hardstanding and engineering works onto open land. In spatial terms, the development would increase the amount of built form on the site and would therefore reduce the openness of this part of the Green Belt.
9. The stable would be set below the level of Harper Royd Lane and would use dark-stained timber and a low roof profile. These factors would reduce its visibility within the wider landscape. Nevertheless, the development would still be seen from Harper Royd Lane and from wider public vantage points across the valley, where it would be experienced as a new building extending built form onto the valley side. Consequently, the proposal would also have a harmful effect on openness in visual terms.
10. I recognise that the scale of the building would be modest and that the degree of activity associated with the private stabling of horses would be limited. Furthermore, its low-profile design, materials and siting would reduce its visual and spatial effects. Taking these matters together, I am satisfied that the proposal would seek to minimise its impact on the openness of the Green Belt.
11. Nevertheless, the appeal site forms part of open countryside on the valley side, and the proposal would introduce a new isolated building into that setting. As such, it would conflict with the purpose of safeguarding the countryside from encroachment. The presence of other stables and ancillary buildings in the wider

area does not alter that finding, as the appeal proposal must be assessed on its own site-specific effects.

12. For these reasons, I conclude that the proposal would not satisfy the requirements of Policy GB7(1)(f) of the Framework. Although the proposal would seek to minimise its impact on the openness of the Green Belt through its scale, siting and design, it would conflict with the purpose of safeguarding the countryside from encroachment. Consequently, the proposal would constitute inappropriate development in the Green Belt in conflict with policy. It would also conflict with Policy GB1 of the LP which, read in light of the current Framework, seeks to prevent inappropriate development in the Green Belt and protect its openness.

Character and Appearance

13. The appeal site forms part of an open pastoral hillside characterised by small field parcels enclosed by fencing and occasional stone walls, scattered trees and areas of woodland. These features contribute to the rural character of the valley side and the wider landscape setting of Sowerby Bridge.
14. The site lies within the Ringstone Edge and Norland Moor Fringes Special Landscape Area and the Blackwood Common Landscape Character Area. Despite some sporadic development in the wider area, the appeal site itself remains undeveloped and contributes to the open character of the hillside.
15. The proposed stable would introduce a new building, associated hardstanding and engineering works into this undeveloped landscape. Although the scale, design and materials would be typical of equestrian development, that does not overcome the implications of its siting. The proposal would extend built development further down the valley side and reduce the open, undeveloped character that presently contributes to local distinctiveness and sense of place.
16. I have taken into account the existence of other stables and ancillary structures in the wider area. However, their presence does not, in itself, provide justification for additional development in this part of the landscape. The issue is not solely whether the building would appear incongruous, but whether its introduction would conserve or enhance the landscape character of the area. In this regard, it would not.
17. Consequently, I conclude that the proposal would harm the character and appearance of the area. It would therefore conflict with Policy GN4 of the LP which seeks, among other things, to protect important and distinctive views, avoid adverse effects on the scenic quality of the Special Landscape Area, and protect and enhance landscape quality, sense of place and local distinctiveness.

Other Considerations and Green Belt Balance

18. The proposal would provide accommodation for the appellant's horses and support the continued recreational use of the land for equestrian purposes. I accept that this represents a benefit of the scheme. However, that benefit would be mainly private in nature and does not attract more than limited weight in favour of the proposal.
19. Planning permission exists for the demolition of the existing stable within the wider landholding and its replacement with a dwelling. If implemented, that permission would remove the existing stabling facilities currently available on the site. I therefore recognise that the appeal proposal would provide replacement

accommodation for the appellant's horses. However, the existence of the extant planning permission does not, on its own, justify the proposed development. I therefore attach limited weight to this matter.

20. The proposal includes biodiversity enhancements, including tree planting and bird and bat boxes. However, the scale of the proposed enhancement would be modest. As such, these measures would attract limited weight in favour of the proposal.
21. I have also taken into account the support expressed by some nearby residents, who consider that the proposal would have limited effects on the Green Belt and support the grant of planning permission. Local opinion is a material consideration, but planning appeals are determined on their planning merits. In this case, I attach limited weight to those expressions of support.
22. There is no substantive evidence before me that the proposal would cause unacceptable harm in relation to highway safety, drainage, mineral safeguarding or neighbouring living conditions. However, the absence of harm in these respects is neutral and does not weigh either for or against the proposal.
23. The proposal would constitute inappropriate development in the Green Belt because, although it would seek to minimise its impact on openness, it would conflict with the purpose of safeguarding the countryside from encroachment. In accordance with the Framework, I give substantial weight to the resulting Green Belt harm. In addition, the proposal would harm the character and appearance of the area, including the landscape character of the Special Landscape Area and Landscape Character Area.
24. Set against that harm, I attach limited weight to the provision of stabling for the appellant's horses, the replacement of stabling facilities that could otherwise be lost through implementation of the extant planning permission, and the proposed biodiversity enhancements. I have also had regard to the support expressed by nearby residents. However, these considerations, whether taken individually or cumulatively, do not clearly outweigh the substantial weight that I give to the Green Belt harm, together with the harm to the character and appearance of the area. Consequently, the very special circumstances necessary to justify the development do not exist.

Conclusion

25. The proposal would be inappropriate development in the Green Belt because it would conflict with the purpose of safeguarding the countryside from encroachment. It would also harm the character and appearance of the area.
26. For the reasons given above, the other considerations in this case do not clearly outweigh the harm that I have identified. Consequently, the very special circumstances necessary to justify the development do not exist.
27. The proposal conflicts with the development plan taken as a whole, and material considerations do not indicate that the appeal should be determined other than in accordance with it. I therefore conclude that the appeal should be dismissed.

Chris Mayes

INSPECTOR